

Surya Trauma Centre and Hospital v. State of U.P. & Others

High Court of Judicature at Allahabad · Division Bench · 15 February 2023 (interim order; petition pending, last listed 4 November 2025) · Writ-C No. 34085 of 2022 · **No final disposition — the writ petition remains pending. By interim order dated 15.2.2023 the Division Bench granted conditional protection: subject to the petitioner depositing a further sum of Rs.5 lakhs within two weeks before respondent no.3, the respondents would take no coercive measure against the petitioner in pursuance of the impugned demand till the next date of listing. The petitioner deposited Rs.5,00,000 on 21.2.2023, and the interim order has since been extended from time to time before successive Division Benches; as of the last order in the record, dated 4.11.2025, the matter awaits final hearing.**

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HEADNOTE

An interim order in a pending challenge to an electricity demand. The petitioner, a hospital, challenged a demand raised by the licensee on the footing of a slow/defective meter, contending that the defective-meter procedure under the U.P. Electricity Supply Code, 2005 had not been followed and that, under Clause 5.6(c)(ii), even a slow meter permits revision of bills only for the three months preceding the month in which the dispute arose, whereas the demand had been raised from the date the connection was released (July 2019). Without deciding the merits, the Division Bench (order dated 15.2.2023) granted conditional interim protection: subject to the petitioner depositing a further Rs.5 lakhs within two weeks before respondent no.3, no coercive measure would be taken against the petitioner in pursuance of the impugned demand till the next date. The petitioner complied by depositing Rs.5,00,000 on 21.2.2023, and the interim order was extended from time to time. The matter has been listed before successive Division Benches without a final decision and remains pending (last listed order dated 4.11.2025). The record thus yields an interim arrangement, not a ruling on the Clause 5.6(c)(ii) contention.

FACTUAL SUMMARY

The petitioner, Surya Trauma Centre and Hospital, filed Writ-C No. 34085 of 2022 challenging an electricity demand raised by the respondent licensee (through respondent no.3) on the footing that its meter was found running slow/defective. The petitioner contended that the procedure prescribed under the U.P. Electricity Supply Code, 2005 for a defective meter had not been followed, and that under Clause 5.6(c)(ii), even if the meter was accepted to be running slow, the licensee could revise the bills only for the three months preceding the month in which the dispute arose, whereas the impugned demand had been raised from the date the connection was released (July 2019). The petition was listed on numerous dates from 6.12.2022 onwards, with repeated adjournments. By order dated 15.2.2023 the Court granted the Electricity Department three weeks to file a counter affidavit and passed a conditional interim order restraining coercive recovery subject to a further deposit of Rs.5 lakhs; the petitioner deposited Rs.5,00,000 on 21.2.2023 (recorded on 14.3.2023). The interim order was thereafter extended repeatedly, and the matter was placed before successive Division Benches. As of the last order in the record, dated 4.11.2025, the petition remained pending for final hearing with the interim protection continuing.

REUSABLE CONSTRUCTIONS

1. In a pending challenge to an electricity demand, interim protection against coercive recovery may be granted on condition that the consumer deposits a specified sum with the licensee, the protection continuing till the next date and being extended from time to time. **order of 15.2.2023**

HOLDING-UNITS

HOLDING-UNIT · UP-2005::5.6

OBITER

Conditional interim protection against coercive recovery pending challenge to a slow-meter demand under Clause 5.6

QUESTION

Pending a challenge to a demand raised on a slow/defective meter allegedly contrary to Clause 5.6(c)(ii) of the U.P. Electricity Supply Code, 2005, on what terms may the consumer be protected from coercive recovery?

HOLDING

The Court did not decide the merits. Recording the petitioner's contention that the defective-meter procedure had not been followed and that Clause 5.6(c)(ii) confines revision of a slow meter's bills to the three months preceding the month of dispute (as against a demand raised from July 2019), the Division Bench granted conditional interim protection by order dated 15.2.2023: subject to a further deposit of Rs.5 lakhs within two weeks before respondent no.3, the respondents would take no coercive measure against the petitioner in pursuance of the impugned demand till the next date. The petitioner deposited Rs.5,00,000 on 21.2.2023 and the interim order was extended from time to time. The petition remains pending (last listed order dated 4.11.2025); no ruling on the Clause 5.6(c)(ii) point has been rendered. **order of 15.2.2023**

EVIDENCE *"In the meantime, subject to the petitioner depositing a further sum of Rs.5 lakhs within two weeks from today before respondent no.3, the respondents will not take any coercive measure against the petitioner in pursuance of the impugned demand till the next date of listing"* **order of 15.2.2023**

EVIDENCE *"under Clause 5.6 (c) (ii) even if it is accepted that the meter was found to be running slow, the respondents were empowered to revise the bills of previous three months prior to the month in which the dispute had arisen"* **order of 15.2.2023**

FLAG Order-sheet matter with no printed page numbers or numbered paragraphs (pin_basis=date). Interim order only; matter pending before successive Division Benches, last listed 4.11.2025. The Clause 5.6(c)(ii) point is the petitioner's recorded contention, not a decided holding.

PRINCIPLE TAGS

interim-protection-pending-meter-demand-challenge Coercive recovery of a slow/defective-meter demand restrained pending the writ, on condition of a deposit before the licensee. **order of 15.2.2023**

part-deposit-stay-of-recovery-without-prejudice Recovery of the impugned demand stayed on a part deposit (Rs.5 lakhs) pending final hearing. **order of 15.2.2023**

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE IMPUGNED DEMAND COMPLIED WITH CLAUSE 5.6(C)(II) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 (SLOW-METER REVISION LIMITED TO THE THREE MONTHS PRECEDING THE MONTH OF DISPUTE)

The petitioner contended the demand was raised from the date of release of the connection (July 2019), beyond the three-month window, and that the defective-meter procedure was not followed. The Court recorded the contention but did not decide it; only conditional interim protection was granted and the petition remains pending. See SCJ-203 for the proposition that a slow meter's difference is confined to three months under Clause 5.6(c)(ii). **order of 15.2.2023**

RELATED CASES — SEE ALSO

SCJ-203 — Directly supports the petitioner's contention: under Clause 5.6(c)(ii) the difference on a slow meter is confined to the three months preceding the month of dispute (here left undecided).

SCJ-2199 — Companion interim posture — interim protection granted pending a challenge to a meter-based demand.

SCJ-2194 — Conditional interim stay of recovery on a deposit, pending the writ.

SCJ-083 — Clause 5.6 meter-dispute procedure must be exhausted before writ; frames the defective-meter regime engaged here.